

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-28

COOL LIVING LLC,

COMPLAINANT,

v.

ALPI U.S.A., INC.,

ALPI AIR & SEA A/S,

RESPONDENTS.

**JOINT STATUS REPORT AND PROPOSED
DISCOVERY SCHEDULE**

Pursuant to 46 C.F.R. § 502.141(h) and the December 9, 2025 Initial Order, Complainant, Cool Living LLC (“Cool Living”) and Respondents, ALPI U.S.A., Inc. and ALPI Air & Sea A/S (“ALPI”) (collectively the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report and proposed discovery schedule.

Initial Disclosures. The Parties have exchanged their Initial Disclosures.

CADRS. On Thursday, January 22, 2026, the Parties participated in a preliminary conference with Mr. Philip Lee of FMC’s Consumer Affairs and Dispute Resolution Services (“CADRS”). During this conference, the Parties agreed that a CADRS-facilitated mediation would

be beneficial. The Parties are currently coordinating regarding the scheduled mediation date and intend to participate as soon as possible subject to the availability of CADRS, the parties, and counsel.

Discovery Schedule. The Parties submit the following proposed discovery schedule.

Event	Proposed Date
Participation in CADRS Mediation	TBD
Service of Initial Requests for Production and Fact Interrogatories	February 28, 2026
Complete Initial Document Production	April 30, 2026
Begin Fact Depositions	May 1, 2026
Completion of All Discovery	June 13, 2026

At this stage, the Parties do not anticipate expert discovery in this matter.

The above schedule complies with completing discovery within the 150-day statutory limit pursuant to 46 C.F.R. § 502.141(g), as further supported by the Initial Order.

Respectfully Submitted,

Dated: January 29, 2026

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By: /s/ Ashleigh T. Higgs

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